

PLJ 2018 Lahore 87

Present: ABID AZIZ SHEIKH, J.

LESCO through Chief Executive, Lahore etc.--Petitioners

versus

M/s. TAJ INTERNATIONAL (PVT.) LTD. Through Director and 2 others--Respondents

W.P. No. 38130 of 2015, decided on 17.10.2016.

Electricity Act, 1910 (IX of 1910)--

---S. 26(6)--Regulation of Generation transmission and distribution of Electric Power Act, 1997, S. 38--Constitution of Pakistan, 1973, Art. 199--Constitutional Petition--Detection Bill--Illegal abstraction of energy--Meter tampering--Detection bill--Petition accepted--Appeal dismissed--Limitation--Challenge to--After analyzing consumption data came to conclusion that technically there was nothing wrong with impugned meter during disputed period till its damage by some employee of company on 30.1.1997--Respondents were also advanced to charge revised bill for period from 30.1.1997 to date of replacement of impugned changed meter--No misreading and non reading on record has been shown in findings of fact recorded by Respondent No. 2 which was also upheld by Respondent No. 3--Impugned order by Respondent No. 2 was passed after 90 days prescribed in Section 26(6) of Electricity Act, admittedly said objection was never raised before authorities below--Even in this constitutional petition this ground has not been raised--Aforesaid ground was never raised by petitioners before appellate authority or even in this constitutional petition, therefore, this ground cannot be raised verbally at time of arguments--It also not specified in petition that when petition was entertained and when 90 days were expired, hence ground being mixed question of law and facts cannot be allowed to raised verbally unless specifically agitated before for below and also in this constitutional petition--Petition dismissed. [P. 89] A, B & C

Ch. Khalil-ur-Rehman, Advocate for Petitioners.

Mr. Muhammad Younas, Advocate for Respondents.

Date of hearing: 17.10.2016.

ORDER

This constitutional petition has been filed against order dated 30.12.2014 passed by Respondent No. 2 and order dated 28.05.2015 passed by Respondent No. 3.

2. Brief facts are that Respondent No. 1 was charged with detection bill of Rs. 6983689/- for period from March, 1996 to January, 1997. Respondent No. 1 challenged detection bill before Respondent No. 2 under Section 26(6) of the Electricity Act, 1910 (Electricity Act) and Section 38 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (NEPRA Act). Respondent No. 2 accepted petition on 30.12.2014 in capacity of Provincial Office of Inspection (POI). The appeal filed by petitioners was also dismissed by Respondent No. 3 on 28.07.2015 hence this petition.

3. Learned counsel for petitioners argued that according to inspection report, the meter of Respondent No. 1 was found broken therefore, it was clear case of theft of energy. Submits that

aforesaid aspect of the matter was not considered by Respondents No. 2&3. Further argued that order passed by Respondent No. 2 was beyond period of 90 days therefore, same was not sustainable under Section 26(6) of the Electricity Act.

4. Learned counsel for respondents supported the impugned orders being well reasoned and based on record. Submits that objection that order by Respondent No. 2 was passed after 90 days in violation of Section 26(6) of the Electricity Act was never raised before any forum including in grounds of this constitutional petition therefore, this argument cannot be entertained verbally. Adds that in any case order was passed by Respondent No. 2 in capacity of Provincial Office of Inspection under Section 38 of NEPRA Act therefore, limitation prescribed in Section 26(6) of the Electricity Act was not applicable

5. I have heard the learned counsel for parties and perused the record.

6. The perusal of record shows that detection bill was issued on allegation of illegal abstraction of energy by tempering/burning the billing meter. Admittedly billing meter was neither preserved nor made available before Respondent No. 2 to check its status/accuracy. In the circumstances, Respondent No. 2 perused available record and after analyzing consumption data came to conclusion that technically there was nothing wrong with impugned meter during the disputed period till its damage by some employee of company on 30.01.1997. Respondents were also allowed to charge revised bill for the period from 30.01.1997 to the date of replacement of impugned damaged meter. No mis-reading and non-reading on record has been shown in the findings of fact recorded by Respondent No. 2 which was also upheld by Respondent No. 3.

7. So far as argument of petitioners that impugned; order by Respondent No. 2 was passed after 90 days prescribed in Section 26(6) of the Electricity Act, admittedly said objection was never raised before the authorities below. Even in this constitutional petition this ground has not been raised. The respondent counsel also controverted this argument by stating that impugned order by Respondent No. 2 was in capacity of POI under Section 38 of the NEPRA Act, in which no limitation of 90 days has been prescribed and further as per provision of Section 45 of NEPRA Act the said Act overrides the provision of Electricity Act. He also contends that being subsequent law NEPRA Act will prevail. I have considered the arguments of learned counsel for parties and of the view that as aforesaid ground was never raised by petitioners before Appellate Authority or even in this constitutional petition, therefore, this ground cannot be raised verbally at the time of argument. It is also not specified in petition that when application was entertained and when 90 days were expired, hence ground being mixed question of law and facts cannot be allowed to be raised verbally unless specifically agitated before for below and also in this constitutional petition.

8. In view of above discussion, this petition has no merit which is accordingly **dismissed**.

(Y.A.) Petition dismissed